

Aditya Gupta vs Vijender Sharma on 26 April, 2025

ADITYA GUPTA Vs VIJENDER SHARMA

IN THE COURT OF MS PARUL SHARMA:
LD. JMFC NI ACT DIGITAL COURT-02:
NORTH-WEST DISTRICT ROHINI, NEW DELHI.

CC NI Act No.1450/2022

ADITYA GUPTA Vs VIJENDER SHARMA

Name of complainant	: ADITYA GUPTA, proprietor Giriraj Steel & Company A-102/6, Wazirpur Industrial Area, Delhi - 110052
Name of Accused	: VIJENDER SHARMA, CMD/Director, Multi Verse Venture LLP, 14-Kapasheda Estate, New Delhi - 110037
Offence complained of	: 138 NI Act
Plea of accused	: Not guilty
Arguments heard on	: 07.04.2025
Date of judgement	: 26.04.2025
Decision	: Convicted

CC NI Act No. 1450/2022

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ADITYA GUPTA Vs VIJENDER SHARMA

JUDGMENT

1. Vide this judgment, I shall decide the present complaint filed by complainant Aditya Gupta being the proprietor of Giriraj Steel & Company (hereinafter referred to as 'complainant') against Sh. Vijender Sharma, CMD/Director Multi Verse Venture LLP (hereinafter referred to as 'accused') regarding dishonor of cheque bearing no 157774 dt. 03.01.2022 for an amount of Rs. 25,00,000/- drawn on Axis Bank, Ahmedabad, Gujarat (hereinafter referred to as 'cheque in question'). The complainant is being represented in this matter by his uncle Sh. Vivek Garg who is the SPA holder and further all the negotiations have admittedly happened between complainant and the accused through Sh. Vivek Garg.

2. FACTS 2.1. Briefly stated, it is the case of the complainant that due to financial crisis during the COVID period, family of the complainant planned to start a short time business of buying/selling of 3M brand masks since they were in huge demand at that time. The said business plan was shared by the complainant with his uncle/SPA holder.

2.2. After doing some inquiries, SPA holder told the complainant that the accused is known to him since last few Digitally signed by PARUL PARUL SHARMA SHARMA Date:

2025.04.26 15:42:17 +0530 ADITYA GUPTA Vs VIJENDER SHARMA years and is engaged in the business of Importing 3M Masks and other related products required at the time of COVID-19. The complainant told the SPA holder to finalize the matter with the accused.

2.3. After finalization of the deal, the accused told the SPA holder that for the purpose of importing the 3M masks, some upfront advance payment is required to be done i.e. 20% of the total value. After negotiations, the accused agreed to import the 3M masks for the complainant for an advance amount of Rs. 35 lacs.

2.4. As per the agreed terms, the accused assured the SPA that if he fails to import the 3M masks practically within 15 days after receiving the advance payments, he shall return not only an amount equivalent to four times of the advance amount but also pay interest for the delayed payments. Further, the complainant paid a sum of Rs. 35 lacs on account of advance payment via RTGS to the accused.

2.5. It is further the case of the complainant that despite assurances, the said 3M masks were not imported by the accused on the ground of delay in cargo flights.

2.6. Thereafter, after several follow-ups, the accused sent the cheque in question to the SPA holder along with an assurance letter dt. 07.12.2021. Further, request was made by the accused to hold the deposition of the cheque in question. After elapse of two Digitally signed by PARUL PARUL SHARMA SHARMA Date:

2025.04.26 15:42:21 +0530 ADITYA GUPTA Vs VIJENDER SHARMA months and upon asking of the accused, the cheque in question was deposited by the complainant with his banker on 09.03.2022 which was dishonored with remarks "Funds Insufficient" vide return memo dt. 19.03.2022.

2.7. The complainant sent the statutory legal demand notice through his counsel on 15.10.2022 calling upon the accused to make the payment of the cheque in question. Further, the said legal demand notice was delivered upon the accused on 19.10.2022. However, despite receipt of the notice, no payments were made by the accused within the statutory period of 15 days. Hence, the present complaint.

2.8. It is also the case of the complainant that earlier to the cheque in question, the accused had issued another cheque bearing no. 186899 dt. 05.07.2020 for an amount of Rs. 35 lacs drawn on Axis Bank Ltd in favour of the complainant towards return of the principal amount. However, the said cheque was dishonored.

2.9. On 28.08.2020, the accused sent an amount of Rs.

1,51,000/- via RTGS to the complainant towards the interest. Thereafter, an amount of Rs. 10 lacs was paid by the accused via RTGS through his another company namely Chemus Exim Pvt Ltd towards part payment of the losses incurred by the complainant. Thereafter, another amount of Rs. 1 lac was paid by the accused towards part loss suffered by the complainant.

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3. The present complaint was filed within the limitation period. The accused was summoned vide order dt. 21.07.2022. Since the accused was in judicial custody in another matter, hence production warrants were issued for securing his presence.

4. The accused entered appearance before the court on 21.12.2022 and was admitted to bail on the same day.

5. Notice u/s 251 CrPC.

Notice was framed upon the accused on 07.02.2023 to which he pleaded not guilty and claimed trial. However, he admitted signatures on the cheque in question and his address on the legal demand notice. Further, he denied filling up any other particulars on the cheque in question as well as knowledge regarding dishonor of the cheque in question. It is further the defence of the accused that he does not know the complainant as he has never met him. He further denied knowing anything about the complainant's firm Giriraj Steel & Company. It was further stated by the accused that he was dealing with SPA Holder to whom he issued a blank signed cheque for personal purposes. Further, the statement of the accused u/s 294 was recorded in which a specific question was put to him regarding the assurance letter dt. 07.12.2021. The accused stated that he cannot say if the signatures on the said document were his and further cannot say for sure whether such document was executed by him or not.

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Application u/s 145(2) NI Act was filed by the accused and the same stood allowed vide order dated 13.04.2023.

6. COMPLAINANT EVIDENCE.

6.1. SPA of the complainant Sh. Vivek Garg examined himself as CW1 and adopted his pre summoning affidavit Ex. CW 1/A. Examination-in-chief of CW1 was conducted on 09.01.2024 wherein he relied upon the following documents -

Original cheque bearing no. Ex. CW1/1.

157774 dt. 03.01.2022 for amount of Rs. 25 lacs drawn on Axis Bank, Ahmedabad, Gujarat.

Original bank returning memo Ex. CW1/2 (colly). dt. 19.03.2022 with remarks "Funds Insufficient".

Printout of bank statement of Ex. CW1/3 complainant.

Office copy of legal notice dt. Ex. CW1/4. 15.04.2022.

Original postal receipt and Ex. CW1/5 (colly). internet generated tracking report.

Photocopy of Letter dt.

Mark CW1/A. (later exhibited

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07.12.2021

as Ex. CW-1/8)

Original SPA deed in favour
of Sh. Vivek Kumar Garg.

Ex. CW1/6.

Some of the documents were exhibited at the time of cross examination by CW1/SPA holder of the complainant. The same are as follows:-

Present original complaint u/s Ex. CW1/7 138 NI Act Printout of the Whatsapp chats Ex. CW-1/9 between the SPA holder and the accused Certificate u/s 65B Indian Ex. CW-1/10 Evidence Act Copy of the complaint in CC Ex. CW1/D2 No. 13396/2020 titled as 'Aditya Gupta vs. Vijender Sharma' CW-1 was cross examined on 09.01.2024, 09.08.2024 and 04.11.2024. Closing CE, the matter was listed for recording of SA and further proceedings.

7. STATEMENT OF ACCUSED U/S 313 CRPC Digitally signed by PARUL PARUL SHARMA SHARMA Date:

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8. The accused did not lead any defence evidence. Hence the matter was posted for final arguments.

9. Final oral arguments were advanced by Ld. counsels for both the parties on 07.04.2025.

10. Submissions heard and considered. Records of the case have been duly perused.

11. LAW AND ITS APPLICABILITY TO THE FACTS OF THE CASE:

11.1 To establish the offence under Section 138 of the NI Act against the accused, the complainant must prove the following: -

- i. the accused issued a cheque on account maintained by him with a bank.
- ii. the said cheque has been issued in discharge, in whole or in part, of any legal debt or other liability.
- iii. the said cheque has been presented to the bank within a period of three months from the date of cheque or within the period of its validity.

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iv. the aforesaid cheque, when presented for encashment, was returned unpaid/dishonored.

v. the payee of the cheque issued a legal notice of demand to the drawer within 30 days from the receipt of information by him from the bank regarding the return of the cheque.

vi. the drawer of the cheque failed to make the payment within 15 days of the receipt of aforesaid legal notice of demand.

vii. The debt or other liability against which the cheque was issued is legally enforceable.

11.2 Coming to the facts of the present complaint case, it is not disputed and duly admitted by the accused that the cheque in question bears his signatures. However, he denies that the other particulars were filled up by him. He further states that cheque in question was issued as a blank signed cheque for 'personal purposes' in his statement recorded u/s 251 Cr.P.C.

Further in the statement recorded u/s 313 CrPC, it is stated by the accused he gave two blank signed cheques to Sh. Vivek Garg. Therefore, it can be said that the cheques were drawn by the accused in favour of the complainant. Hence, the essential ingredient no. (i) as discussed in the preceding paragraph stands fulfilled.

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11.3 Accused has further denied having any knowledge regarding the dishonor of cheque in question in the statement recorded u/s 294 CrPC. However, the factum of dishonor stands substantiated by way of bank return memo Ex. CW-1/2. Hence, other essential ingredients as stated in ingredient no. (iii) and (iv) also stands fulfilled.

11.4 Accused has denied the receipt of legal demand notice in his notice u/s 251 CrPC, however has stated that the address mentioned on the legal notice is correct. He has further stated he had left the said address in the month of October, 2021. Further in the statement recorded u/s 313 CrPC accused reiterated his stand with respect to the receipt of legal notice. The fact that the accused was operating from the given address has not been denied by him. Further, accused entered appearance before the court and despite the matter coming in his knowledge and all the relevant documents being supplied to him, has failed to pay the amount within statutory time period of 15 days. Hence, essential ingredient number (v) and (vi) also stands fulfilled in the present case. (Reliance placed on "C.C. Alavi Hazi Vs. Palapetty Mohd & Anr" reported in (2007) 6 SCC 555).

11.5 With respect to the contention of the accused that the cheque in question was issued as a blank signed cheque, it is pertinent to mention that u/s 20 of the NI Act if a person gives a duly signed cheque which is either blank or partly filled then he Digitally signed by PARUL PARUL SHARMA SHARMA Date:

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197).

11.6 Now, since the accused admitted the execution of impugned cheque in question as well as his signatures thereon, the statutory presumptions u/s 118 A and section 139 of NI Act would be raised in favour of the complainant regarding the fact that the impugned cheque have been drawn for consideration and issued by the accused in discharge of legally enforceable debt or other liability. Relying upon the foundational fact one statutory presumption has been raised in favour of the complainant. The burden of proof now lies upon the accused to rebut the said statutory presumption on the yardstick of "preponderance of probabilities". Further, the lack of consideration or existence of legally enforceable debt or liability need not be proved beyond all reasonable doubts. The accused can do the same either by leading evidence or by bringing out such inconsistencies or contradictions in the case of the complainant which simply goes on to overthrow the complainant's case. (Reliance placed on Rangappa Vs. Sri Mohan (2010) 11 SCC441; Basalingappa vs Mudibasappa (2019) 5 SCC 418).

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12. DEFENCES 12.1 At the very earliest instance, in the notice framed u/s 251 Cr.P.C., the accused took the defence that he had never met the complainant and does not know anything about him or his firm namely Giriraj Steel and Company. Further, all the dealings were done by him with a person named Vivek Garg to whom he issued blank signed cheque for the 'personal purposes'. In his statement recorded u/s 294 Cr.P.C, upon asking him specifically if he admitted letter dated 07.12.2021 Ex. CW1/8 (OSR), he stated that he "cannot say for sure" if the signatures on the document are his and further "cannot say for sure" whether such document was executed by him or not.

12.2 Further, in his statement recorded u/s 313 Cr.P.C, it was stated by the accused that the advance amount of Rs. 35 lacs was given to Multiverse Ventures LLP and not to him in his personal capacity. Further an amount of Rs. 12.51 lacs was handed over to Sh. Vivek Garg by him through RTGS. He further stated that he was never personally liable to the complainant and Multiverse LLP was liable. Further, in the said statement, the accused stated that the whatsapp chats Ex. CW1/9 and Ex. CW1/10 to be 'correct' however stated that "the whatsapp chats put on record are selective".

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12.3 The accused also stated that that the masks could not be imported as during the lockdown period, government of no country was permitting inter country trade.

13. The aforesaid defences taken by the accused shall be discussed hereinafter one by one.

13.1 Firstly, it is the defence of the accused that he never knew the complainant or his firm namely Giriraj Steel Company personally and all the dealings were done by him through SPA holder Vivek Garg. Dealing with the said defence, it is noteworthy to look at the bank account statement Ex. CW1/3. The advance amount of Rs. 35 lacs was transferred from the bank account of 'GIRIRAJ STEEL AND CO' to 'MULTIVERSE VENTURE LLP' via RTGS/NEFT in two installments of Rs. 15 lacs and Rs. 20 lacs on 13.05.2020 and 15.05.2020 respectively. Receipt of the said amount by the accused is not disputed. Hence, it is not believable as to why a huge amount of Rs. 35 lacs shall be received by way of a bank transfer from a stranger without any prior introduction and understanding. Also, it has not been disputed by the accused that he had no association with Multiverse Venture LLP or that he was never the partner/CMD as alleged by the complainant. Further, it has been specifically stated by the accused in Whatsapp chats Ex. CW1/9 at Point 'A' as follows:-

"Multiverse venture LLP Digitally signed by PARUL PARUL SHARMA SHARMA
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estate, New Delhi 110037.

Galaxy is subsidiary to this company"

It is the case of the complainant that pursuant to the said conversation and upon specific asking of the accused, the amount of Rs. 35 lacs was transferred in the account of Multiverse LLP. Further, it was stated by CW1/SPA holder of the complainant in his cross examination dt. 09.01.2024 that since COVID pandemic was going on, hence a VC meeting was arranged by him between the accused and the complainant. The suggestion about no direct dealings between the complainant and accused was specifically denied by him. Although, the said factum about VC meeting between the accused and the complainant has not been mentioned in the complainant, however the said omission is not grave to the extent of punching hole in the version of the complainant. Hence, the first defence taken by the accused is not sustainable.

13.2 Secondly, it is the case of the accused that the amount of Rs. 35 lacs was given in the account of Multiverse Venture LLP and never to him personally. Hence, he is not liable to the complainant in his personal capacity and liability, if any, is that of Multiverse LLP. If the said defence of the accused is held for a moment, it is not explainable as to why the cheque in question was handed over by the accused to the complainant Digitally signed by PARUL PARUL SHARMA SHARMA Date:

2025.04.26 15:43:08 +0530 ADITYA GUPTA Vs VIJENDER SHARMA along with letter Ex. CW1/8 (OSR). Upon perusal of the contents of Ex. CW1/8, it is clear that the cheque in question was sent towards admission as well discharge of his liability by the accused. As far as the execution of Ex. CW1/8 as well signatures thereon are concerned, it has not been specifically denied by the accused either in his statement u/s 251 Cr.P.C or u/s 313 Cr.P.C. Further, upon comparing the signatures of the accused on Ex. CW1/8 with that of the admitted signatures of the accused on the cheque in question, it cannot be said that the signatures are different/mismatched.

13.3 Also, since it is specifically written in Ex. CW1/8 that a cheque of Rs. 25 lakhs was sent from account 915020015360978, the defence taken by the accused that the cheque in question was issued as a blank signed cheque also falls to the ground. Be that as it may, the accused has grossly failed to explain as to why the cheque in question was issued in favour of the complainant in the first place.

13.4 Further, as far as the defence of the accused is concerned that he has no personal liability towards the complainant and the liability is that of Multiverse LLP, it is pertinent to note that no document has been brought forth on record by the accused - firstly, to prove that Multiverse LLP is a limited liability partnership concern wherein he has no liability/limited liability and secondly, that he had no concern Digitally signed by PARUL PARUL SHARMA SHARMA Date:

2025.04.26 15:43:12 +0530 ADITYA GUPTA Vs VIJENDER SHARMA with the said LLP and hence has no liability towards the complainant. The accused had nowhere specifically denied about his role/position in Multiverse LLP and has simply shifted the liability upon the said LLP. No cogent explanation has been given as to why he issued the cheque in question in favour of the complainant in his personal capacity and from his personal account. Merely evasively denying his liability and stating it to be that of Multiverse LLP cannot amount to rebutting the presumption u/s Section 139 r/w Section 118 NI Act by any stretch of imagination.

13.5 It has been further stated by the accused that an amount of Rs. 12.51 lacs was handed over to the SPA holder by way of RTGS. It is vehemently argued by Ld. Counsel for the accused that since the sum of Rs. 12.51 lacs was admittedly received by the complainant from the accused, hence the cheque could have been presented only for the balance amount of Rs.

22,49,000/- and not for the whole amount of Rs. 25 lacs. An endorsement regarding the same was required to be made upon the cheque as per Section 56 of NI Act. He relies upon the following judgments:-

i) Dashrathbhai Trikhambhai Patel vs. Hitesh Mahendrabhai Patel & Ors, Crl. Appeal No. 1497 of 2022 (MANU/SC/1294/2022) passed by Hon'ble Apex Court Digitally signed by PARUL PARUL SHARMA SHARMA Date:

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ii) Lyca Finance Ltd. vs State & Ors.

(MANU/DE/3869/2016) passed by Hon'ble High Court of Delhi

iii) Starkey Laboratories India Pvt. Ltd vs. Sanjay Gujral, Crl. L.P No. 492/2017 dt. 24.09.2019 passed by Hon'ble High Court of Delhi 13.6 Per contra, it was argued by Ld. Counsel for the complainant that the said amount of Rs. 12.51 lacs was paid by the accused in the year 2020 towards part interest/losses suffered by the complainant and never towards the principal liability of Rs. 35 lacs. Further, it has been stated that cheque in question dt. 03.01.2022 was issued along with letter dated 07.12.2021 towards return of the principal advance amount only. The cheque in question was deposited as per the assurance of the accused in the month of March, 2022 however the same was dishonored. The said factum is also stated to be acknowledged by the accused in the whatsapp chats Ex. CW1/9. The relevant portion of Ex. CW1/9 is reproduced as below:-

"Maine sirf yeh bataya ki paise ke liye kya kar raha hoon. Check diya jo bounce hua
Wo meri galti hai. Mai mana kar sakta tha abhi mat dalo lekin maine kisi ke kehne pe
bol diya ki daal do Digitally signed by PARUL PARUL SHARMA SHARMA Date:

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chor hota to check kyon dege apne haath katvata"

Hence, no endorsement was required to be made as per Section 56 NI Act as argued.

13.7 Dealing with the said argument of Ld. counsel for the accused, it is noteworthy to mention that no evidence has been brought forth on record to prove that the cheque in question was issued prior to the aforesaid payments of Rs. 12.51 lacs thereby warranting endorsement as per Section 56 of NI Act. Admittedly, all the aforesaid payments were made by the accused in the year 2020 i.e., prior to the issuance as well as presentation of the cheque in question. Hence no question of endorsement u/s 56 NI Act arises, if at all. Also, it is the case of the complainant that Rs. 12.51 lacs were paid by the accused towards the losses/interest as agreed and never towards the principal amount of Rs. 35 lacs. In the absence of any cogent evidence on record disproving the same, there is no reason as to why the version of the complainant should not be believed. More so, from the whatsapp conversations Ex. CW1/9 it is evident that the accused never disputed the cheque amount at any given point of time. Hence, the said defence is merely an afterthought and does not deserve merit.

13.8 It has been argued by Ld. Counsel for the accused that there was no agreement as to payment of interest or Digitally signed by PARUL PARUL SHARMA SHARMA Date:

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to the complainant as alleged. Further, a specific question was put to CW1 regarding
putting on record any written communication to show that accused promised to pay
interest. In reply, CW1 relied upon Ex. CW1/9 wherein at Point 'C' the accused has

agreed for the same. The said Point 'C' is reproduced as follows:-

" 3M ke Mask's mein 19.75 cr mere aur 45 lakh aapke"

13.9 Dealing with the aforesaid contention of the accused, it is noteworthy to mention that as per the case of the complainant, another cheque bearing no. 186899 dt. 05.07.2020 amounting Rs. 35 lacs was issued by the accused in favour of the complainant's firm towards return of the principal advance amount however the said cheque was also dishonoured. The said fact about the issuance of aforesaid cheque by the accused has not been disputed at any point of time. Further, the cheque in question dt. 03.01.2022 was issued by the accused amounting to Rs. 25 lacs. Going by the same coupled with aforesaid extract at Point 'C' Ex. CW1/9, the version of the complainant regarding the interest seems to be plausible. There is no plausible explanation by the accused as to why two consecutive cheques were issued amounting to Rs. 35 lacs and Rs. 25 lacs against the principal advance amount of Rs. 35 lacs. Moreover, the accused has himself admitted the figure of Rs. 45 lakhs in the whatsapp conversation.

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2025.04.26 15:43:30 +0530 ADITYA GUPTA Vs VIJENDER SHARMA 13.10 It has been argued by Ld. Counsel for the accused that another complaint u/s 138 was filed by the complainant pertaining to the aforesaid cheque bearing no. 186899 dt. 05.07.2020 amounting Rs. 35 lacs. However, the said complaint was dismissed for not prosecution. It is argued that the said fact has been concealed by the complainant. Specific questions in that regard were put to CW1 in his cross examination. Further copy of the order dt. 26.02.2021 passed by Sh. Lalit Kumar, PO, DC-03 in CC NI Act No. 13396/2020 was placed on record marked as Mark CW1/D1.

13.11 Upon perusal of the cross examination of CW-1 dt. 09.08.24, it is observed that it was admitted that a case under NI Act was filed against the accused however it was stated by CW1 that the case was dismissed due to technical error of the complainant bank. It was further stated that after dismissal of the case in default, the accused made the payment of Rs. 10 lacs through RTGS on account as part of loss/interest. Further, the factum of issuance of cheque bearing no. 186899 dt. 05.07.2020 amounting Rs. 35 lacs has been mentioned in the complaint however the fact about dismissal of complaint in default has not been mentioned. Be that as it may, the issuance of cheque amounting to Rs. 35 lacs has not been disputed by the accused.

Omission to mention about the complaint w.r.t the said cheque is not fatal to the extent of overthrowing the complainant's case and rebuttal of the statutory presumption raised against the accused.

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13.12 Receiving of amount of Rs. 35 lacs from complainant's firm Giriraj Steel and
Company is not disputed.

Further, signatures on the cheque in question have also not been disputed. No evidence has been led by defence to prove that the accused has no liability towards the complainant and it was that of Multiverse LLP. Further, no evidence has been led to disprove the admission of liability in Ex. CW1/8 and Ex. CW1/9. In fact, all the whatsapp chats Ex. CW1/9 have been stated to be 'correct' however only 'selective' in the statement recorded u/s 313 Cr.P.C. Although some specific questions were raised regarding placing of orders of 3M masks by the complainant, the same have been sufficiently replied to by CW1. It is further pertinent to mention that the accused admitted in the statement recorded u/s 313 Cr.P.C that the masks could not be imported as during the lockdown period, government of no country was permitting inter country trade. Thus, sufficient credence has been led to the version of the complainant. Statement u/s 313 is not recorded on oath however can be used for the limited purpose of cementing/filling up lacunas in the case or for the purpose of connecting the missing links.

14. In light of the foregoing discussion, I find that the cheque in question was issued by the accused in discharge of a legally enforceable liability. The accused has failed to prove all the defences.

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15. I further find that the accused has not been able to rebut the presumptions raised in view of Section 139 r/w Section 118 (a) of the NI Act. Neither a hole has been punched in the story of the complainant, nor could the accused prove his defence on the yardstick of preponderance of probabilities.

16. Hence, the accused is hereby held guilty of the offence u/s 138 NI Act.

17. Let the convict be heard on quantum of sentence.

18. Let copy of this judgment be given to convict free of cost.

Announced in the open Court on 26.04.2025. Digitally signed by PARUL PARUL SHARMA
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2025.04.26 15:43:44 +0530 (Parul Sharma) (JMFC(NI Act) Digital court02)
NorthWest, Rohini New Delhi/26.04.2025 Note : This judgement contains 22 Pages
and each page is signed by the undersigned.